

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Leslie A. Swain
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Leon, Jose
CDC No.: AX8874
Case No.: BA408283-01
Date of Sentence: 09/16/2015

Dear Honorable Leslie A. Swain:

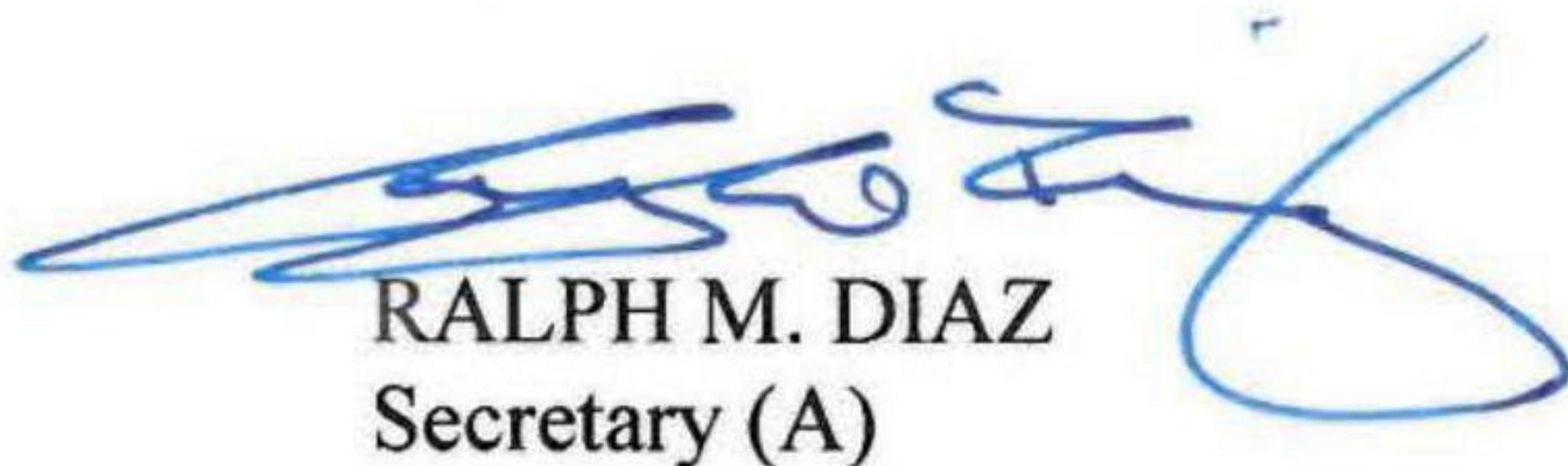
The purpose of this letter is to provide the court with authority to resentence Jose Leon pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Leon was sentenced in 2015, and was convicted of section 245, subdivision (A)(2), ASSLT W/A FIREARM. The trial court sentenced inmate Leon on 09/16/2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Leon's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Leon's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

AX8874 CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSE LEON	DOB: 01061988	BA40828701 ✓	-A
AKA:			-B
CII NO.: A25236958			-C
BOOKING NO.: 3435489			-D
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT		NOT PRESENT	
DATE OF HEARING 09162015 ✓	DEPT. NO. 131	JUDGE: LESLIE A. SWAIN ✓	
CLERK DAVID YAGUCHI	REPORTER MARY DAVIS	PROBATION OFFICER OR PROBATION OFFICER X-1043 ✓ ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE LANA ELAINE JOHNSON		COUNSEL FOR DEFENDANT JOSEPH B. MCINNIS ☒ APPOINTED	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
_____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	1/2 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO Item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MOS.
2	PC	245(A)(2)	ASSLT W/A FIREARM	2012	09/16/15			X	M						X		3	
5	PC	203	MAYHEM	2012	09/16/15			X	M	X							(4)	
					/ /													
					/ /													
					/ /													
					/ /													

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
2	PC 186.22(B)(1)(C)	10	PC 12022.5(A)	4	PC 12022.7(A)	3	17

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 20

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: JOSE LEON

BA408283-01

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 300 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 300 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$80 per PC 1465.8. e. Conviction Assessment: \$60 per GC 70373. f. Other: \$ per (specify):

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify): PER DNA 296 PENAL CODE

11. REGISTRATION REQUIREMENT: ☐ per (specify code section):

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1,116	971	145
B			
C			
D			
Date Sentence Pronounced		Time Served in State Institution	
09 16 2015		DMH CDC CRC	

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin: HIS

15. EXECUTION OF SENTENCING IMPOSED

- a. ☒ at initial sentencing hearing
b. ☐ at resentencing per decision on appeal
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☐ other (specify):

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation
☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

DATE

SEPTEMBER 18, 2015